

Katja Glass
Consulting

Open Source

Practicalities and the legal side

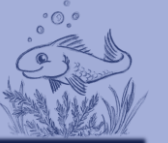


Disclaimer and Disclosures



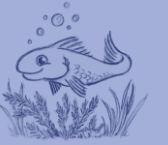
This presentations is intended for educational purposes and does not replace independent professional judgment. Statements of fact and opinions expressed are those of the presenter.

Agenda



- Introduction
 - Rights & Limitations
 - Practicalities
 - Examples
 - Summary
-





Introduction

Introduction



Once upon a time ...



`90s

Introduction



Once upon a time ...



`90s



Introduction



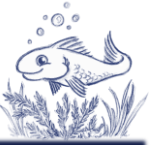
Astonishment, information sharing, images

- Access to information
- Access to images
- Use them!

`90s



Introduction



Legal Claims

➤ Copyright

Uncertainty



Introduction



Report from 2019

- Estimate 2.5 billion images are stolen each day



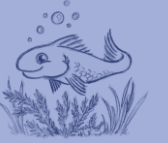
Introduction



Missing education

- How can I use?
- How to share?





Rights & Limitations

Rights and Limitations

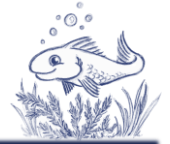


What do we know?

- Copy text NO
- Learn from text YES
- Reference text YES



Rights and Limitations



- Default copyright
- Explicit licenses can be provided

Copyright per default

➤ Example Papers

- Copy text NO
- Copy code NO
- Learn from text YES
- Reprogram idea YES

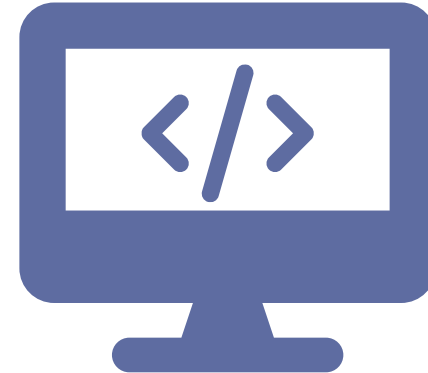
PHUSE Archive									
All materials from PHUSE Events can be found below. Using the filters will allow you to narrow down your search of our vast archive. In the interest of sharing knowledge, this section is open to everyone.									
Show/hide columns ▾									
Event ▾	Year ▾	Region ▾	City ▾	Title ▾	Author ▾	Company ▾	Co-author ▾	Keywords ▾	Links ▾
Connect	2025	US	Orlando	PP07: Topline Considerations for Double-Blind Trials	Veena Palle	Cytel	Naresh Gopalkrishna	PP07; Poster Presentations	POS_PP07.pdf PAP_PP07.pdf
Connect	2025	US	Orlando	PP08: PHUSE Working Groups 2024 Highlights	Chris Price	Roche		PP08; Poster Presentations	POS_PP08.pdf
Connect	2025	US	Orlando	PP09: PHUSE in Japan: Past, Present and Future	Koichi Yamaguchi	Boehringer Ingelheim		PP09; Poster Presentations	POS_PP09.pdf
Connect	2025	US	Orlando	PP10: Transforming Clinical Trial Risk Assessments: From Checkbox to Quality-Driven Success	Kristin Stallcup	Takeda	Rachael Geedey	PP10; Poster Presentations	POS_PP10.pdf
Connect	2025	US	Orlando	PP11: Pivoting to AI: Turning Career Transition into Innovation	Rick Stephens	Good Gorilla		PP11; Poster Presentations	POS_PP11.pdf PAP_PP11.pdf

Rights and Limitations



Copy Code

- Default copyright
- License explicitly provided
- Use copyright code -> possible sue
- Open source license -> follow terms
- Safe way, take idea, rewrite code



Rights and Limitations



Licenses

- Copyright (default)
- General licenses
 - Images
 - Data, Data Model
 - Documents & trainings
- Open Source Licenses
 - Source code
 - AI Models
- Many other licenses



© Licenses – Creative Commons

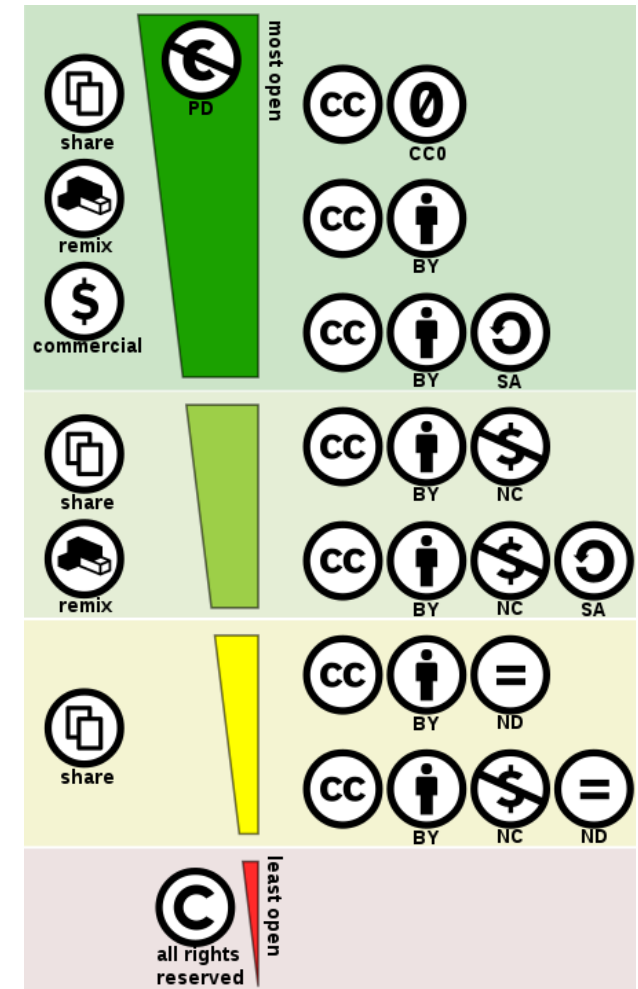


➤ Can be applied all copyright work

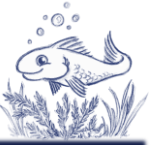
 **Public domain - No rights reserved**

 **BY - Attribution**

 **SA - Attribution - ShareAlike**



Licenses – Open Source Initiative



➤ License types

Permissible

- Allows re-licensing of derived work
 - Apache 2.0, MIT, BSD ...

- Similar BY-Attribution



Copyleft

- Derives must use same license
 - GPLv3, Microsoft Public ...

- Similar ShareAlike

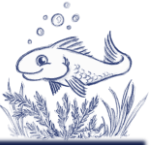


Permissible 78%

Copy-Left 22%

* 2021 Statistics according [WhiteSource](https://www.whitesourcesoftware.com/open-source-statistics)

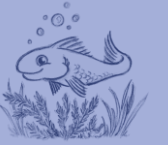
Rights and Limitations



No plaintiff, no judge

- Illegal examples available
- Paper presenter likely wanted to share code for reuse
 - Ask author for permission to be sure





Practicalities

Practicalities



Where to copy code from?

➤ Documentation, help & examples

SAS® Help Center

Customer Support | SAS Documentation

SAS® 9.4 and SAS® Viya® 3.5 Programming Documentation | SAS 9.4 / Viya 3.5

PDF | EPUB | Feedback

Language Statements

ODS Statement Category

SAS Output Delivery System: User's Guide

ODS DOCUMENT Statement

Terms of Use | Copyright © SAS Institute Inc. All Rights Reserved

ODS_ALL_CLOSE Statement

ODS CHTML Statement

ODS CSVALL Statement

ODS DECIMAL_ALIGN Statement

ODS DOCUMENT Statement

ODS EPUB Statement

ODS EPUB2 Statement

Interaction: The combination of the ODS DOCUMENT statement and the DOCUMENT procedure enables you to store a report's individual components and then modify and replay the report. The ODS DOCUMENT statement stores the actual ODS objects that are created when running a report. You can then use the DOCUMENT procedure to rearrange, duplicate, or remove output from the results of a procedure or a database query without invoking the procedures from the original report. For complete documentation about the DOCUMENT procedure, see [DOCUMENT Procedure](#) in *SAS Output Delivery System: Procedures Guide*.

Table of Contents

[Syntax](#)

[Optional Arguments](#)

English

Privacy Statement | **Terms of Use** | Copyright © SAS Institute Inc. All Rights Reserved

Practicalities



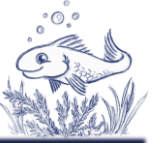
Terms of Use | Copyright © SAS Institute Inc. All Rights Reserved

SAS “Terms of Use” (Use of Website)

- 1) [...] own personal informational, educational or other **non-commercial** purposes unless otherwise expressly indicated;
- 2) all copies you make must properly **attribute** [...]
- 3) you may **not modify** any of the materials [...]
- 4) ...



Practicalities



Check the “Terms of Use” etc.

- Inconvenient
- People rarely do it
- Expectation for online help & documentation is that examples can be use

Purpose

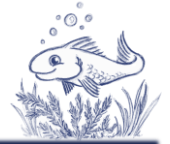
- Protect documentation
- Avoid create a book / embed in different software

Will Software providers sue customer using code from their help documentation?

- Unlikely

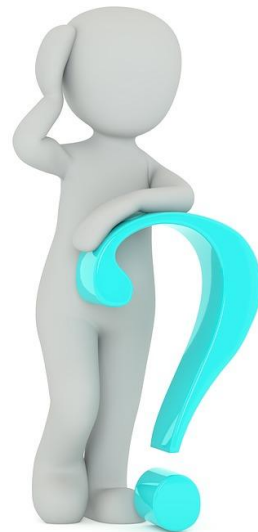


Practicalities



➤ SAS Customer terms (commonly)*

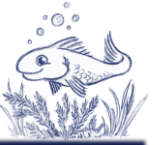
1.3.3 Customer may use any Documentation only to support Customer's use of the related Software.



The screenshot shows the SAS Help Center interface. The top navigation bar includes 'SAS® Help Center', 'Customer Support', and 'SAS Documentation'. Below this, a breadcrumb trail reads 'SAS® 9.4 and SAS® Viya® 3.5 Programming Documentation | SAS 9.4 / Viya 3.5'. A search bar and links for 'PDF', 'EPUB', and 'Feedback' are also present. The left sidebar lists 'Language Statements' with a sub-menu for 'ODS Statement' containing 'Category', 'Descriptions', 'ODS Statements by Category', 'FILE Statement: ODS', 'LIBNAME Statement: SASDOC', 'ODS_ALL_CLOSE Statement', 'ODS HTML Statement', 'ODS CSVALL Statement', 'ODS DECIMAL_ALIGN Statement', 'ODS DOCUMENT Statement' (which is highlighted), 'ODS EPUB Statement', and 'ODS EPUB2 Statement'. The main content area is titled 'SAS Output Delivery System: User's Guide' and 'ODS DOCUMENT Statement'. It includes a description: 'Opens, manages, or closes the DOCUMENT destination, which produces a hierarchy of output objects that enables you to produce multiple ODS output formats without rerunning a PROC or DATA step.' Below this, it specifies 'Category: ODS: Output Control' and 'Interaction: The combination of the ODS DOCUMENT statement and the DOCUMENT procedure enables you to store a report's individual components and then modify and replay the report. The ODS DOCUMENT statement stores the actual ODS objects that are created when running a report. You can then use the DOCUMENT procedure to rearrange, duplicate, or remove output from the results of a procedure or a database query without invoking the procedures from the original report. For complete documentation about the DOCUMENT procedure, see [DOCUMENT Procedure](#) in *SAS Output Delivery System: Procedures Guide*.' At the bottom of the main content area, there is a 'Table of Contents' section with links for 'Syntax' and 'Optional Arguments'. The footer of the page includes 'English', 'Privacy Statement', 'Terms of Use', and 'Copyright © SAS Institute Inc. All Rights Reserved'.

*SAS Support Answer for the related question

Practicalities



What can you do?

Create documentation

- Include license for source examples

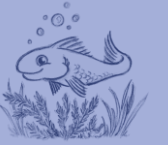
Create post, blog, paper

- Include license for source

Unlicense / Public Domain

MIT (very simple, quote origin)





Examples

Examples



Open Source

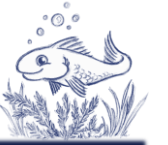
- Use
- Modification
- Free distribution

Types

- Permissible
(attribution & more)
- Copyleft
(re-share)



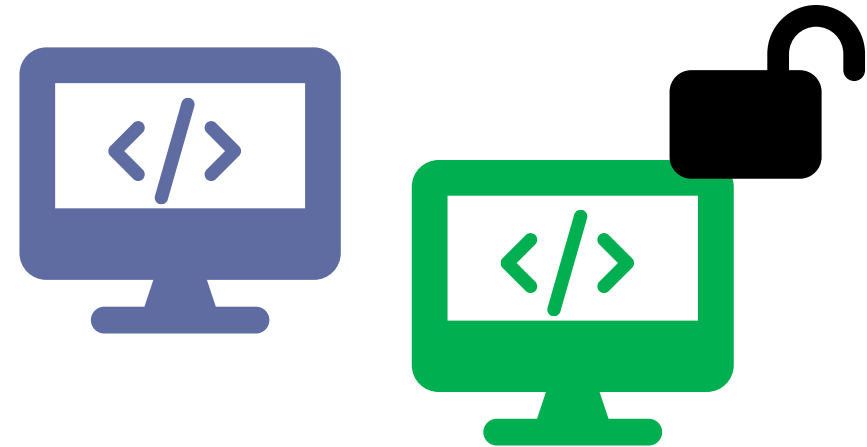
Examples



Permissible

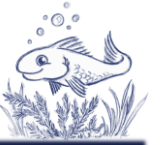


Copyleft



User have right to get source-code

Examples



Find open source tools?

- Open Source Portal for Clinical Study Evaluations

<https://www.glacon.eu/portal>

- COSA Repository

<https://cosa.cdisc.org/>

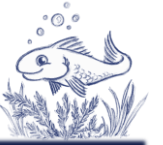
- Pharmaverse

<https://pharmaverse.org/>

The screenshot displays the Katja Glass Consulting website, which features a navigation bar with links to Home, Overview, Programs, More, and Info. The main content area is titled 'Visual' and 'Table' and contains three featured tools:

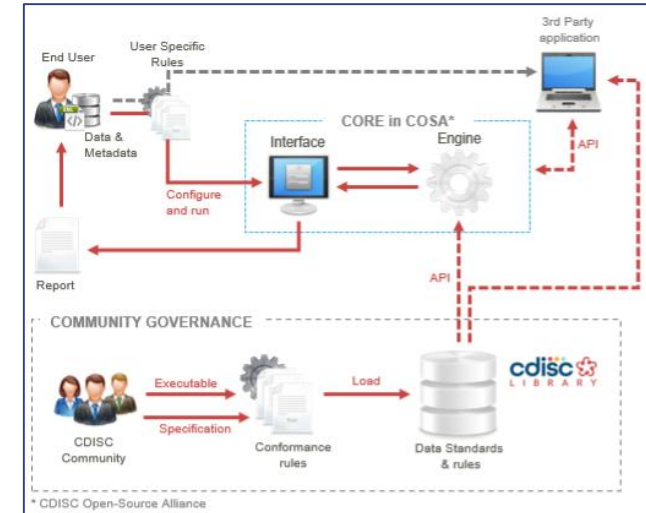
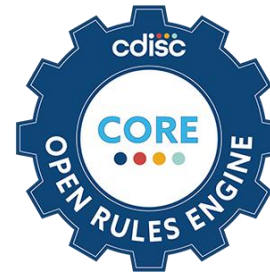
- OpenStudyBuilder**: OpenStudyBuilder - open-source metadata repository with a graph database, a user interface, APIs and more from NovoNordisk. The tool is described as a 'Welcome to the StudyBuilder application' and is built with Python, Cypher, Web, Tool CDISC, and MDR.
- admiral**: admiral - ADaM in R Asset Library - is a R Package to map SDTM to ADaM. This is a huge collaboration project running by Roche and GSK. The tool is described as a 'Welcome to the admiral application' and is built with R, RStudio, and R Markdown.
- RPact**: The R package RPACT is a statistical program module, characterized as a comprehensive, validated software R package, that enables the simulation and analysis of parallel group designs with continuous, binary, and survival endpoint. RPACT can be downloaded per CRAN and will be available as open-source under LGPL3. The tool is described as a 'Welcome to the RPACT application' and is built with R, RStudio, and R Markdown.

Example – CDISC CORE

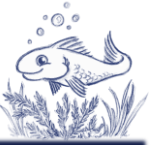


CORE: CDISC Open Rules Engine – engine to validate rules, e.g. CDISC compliance

- Permissible
- MIT License



Example – Modified CORE



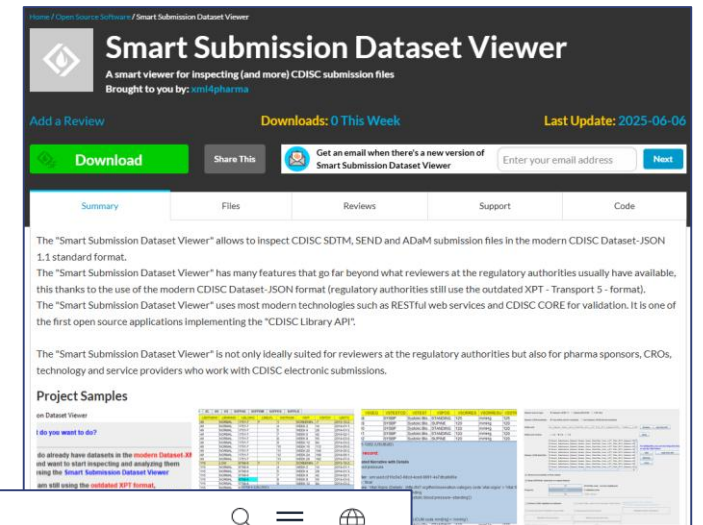
CustomCORE

- Copy the source
- Modify and use
- Keep the original license as reference
- Final source can be copyright



Dataset Processing Tool

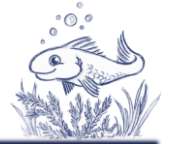
- Copy and use code snippets from CORE
- Keep the original license as reference
- Final source can be copyright



CERTARA[®]

P21 Adds Support for CDISC
Open Rules Engine (CORE)

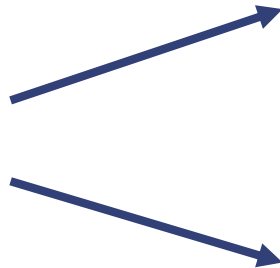
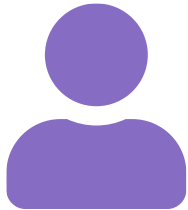
Examples - Copyleft



Open Source
GPL (& similar)



Can sell software
MUST provide source



Rights of users

Use
Modify
Share



Users put everything to
public, granting GPL rights

Users can even sell further,
granting GPL rights

Source NOT published in internet
Rights are to USERS, not public

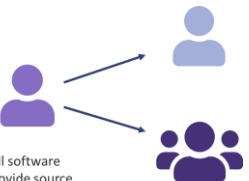
Users can use rights,
Can publish to public



Open Source
GPL (& similar)



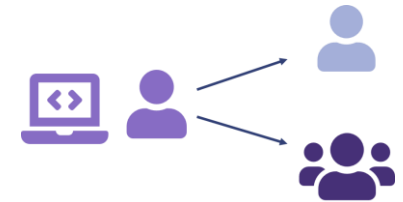
Can sell software
MUST provide source



Example – Copyleft – OpenStudyBuilder



GPL Copyleft License



VendorX Version



GPL

VendorX is paid by PharmaY which is using OpenStudyBuilderModified

PharmaY / users have rights to use, modify, reshare code

Source Code managed in private GitHub

Made available to different user groups



Users



Externals



Academia (ARO)

Example – Copyleft – OpenStudyBuilder

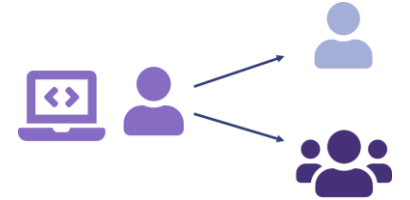


Academia (ARO)

John Doe wants the source for re-use.

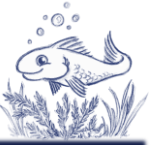
John goes to VendorX and ask for source.

VendorX must provide source.

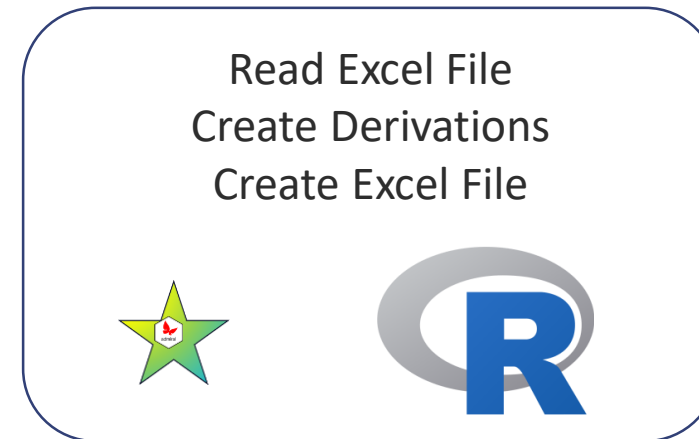
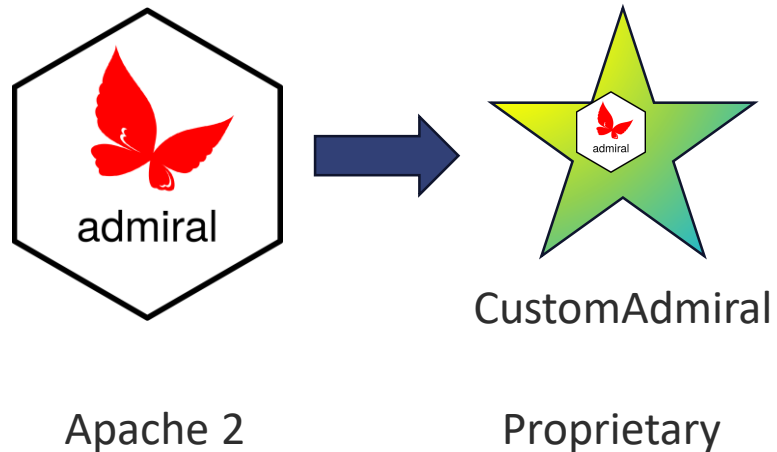


- John receive source
- He does not receive
 - Documentation
 - Change details
 - Database content
 - Configuration details
 - Plugins / Extension which are separate and separately licensed

Example – Copyleft – R



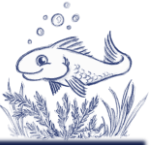
- R software is copyleft open source



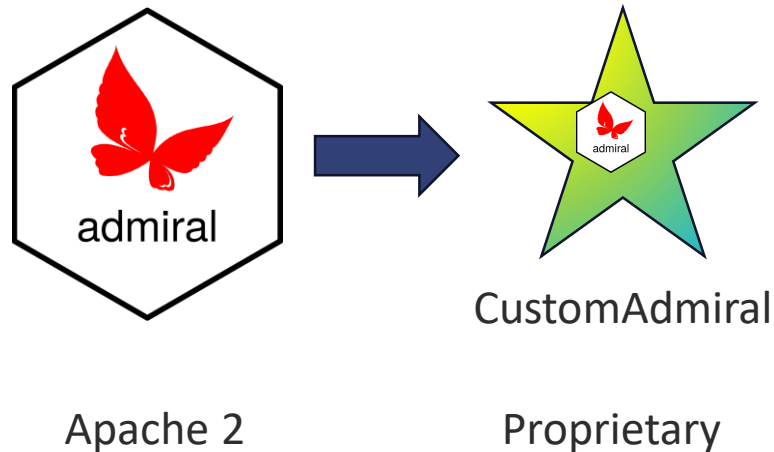
R executable, embedding R
This software is GPL!



Example – Copyleft – R



- R software is copyleft open source



This software is Proprietary!



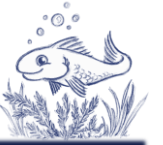
Example – Changing License



- CDISC CORE Changes Announced
 - Possibly license changes from MIT to something else

2026 Membership Benefits				
	Non-Member	Individual Contributor	Gold Driver	Platinum Innovator (Gold Level Access +)
Access				
CDISC Open Rules + CORE Engine	✓ Open Rules Specifications ✓ CORE Engine Source Download ✓ Executable Open Rules	✓ Discounted Annual Certification Fee ✓ CORE Engine Binaries ✓ Validation Documentation	✓ Discounted Annual Certification Fee ✓ CORE Engine Binaries ✓ Validation Documentation	✓ Annual Certification Fee Included ✓ Open Rules Orientation ✓ Implementation Support (10 Hours)

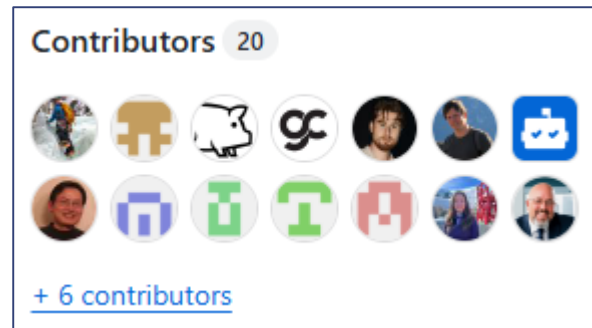
Example – Changing License



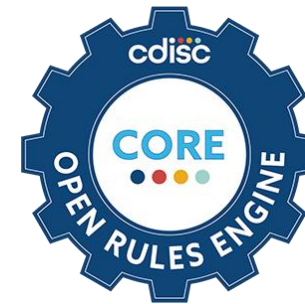
➤ CDISC CORE Changes



MIT

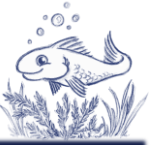


GitHub -> Contributions
accept license terms



MIT

Example – Changing License

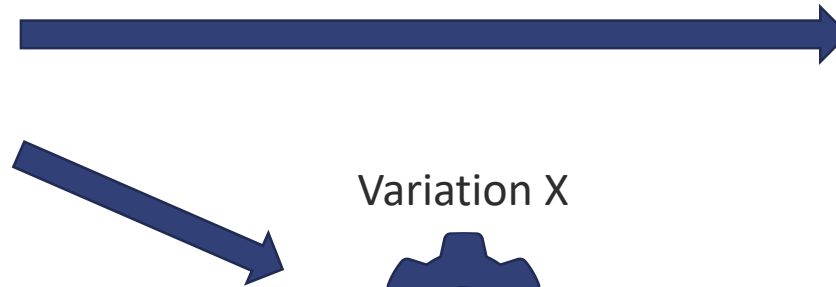


➤ CDISC CORE Changes

Version of 2025



MIT

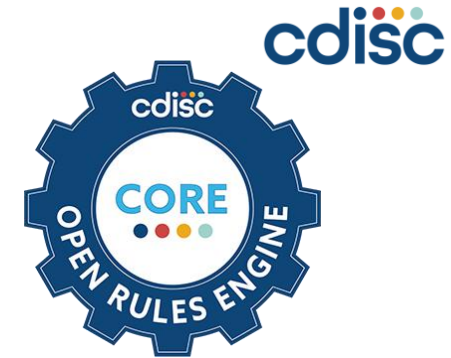


Variation X



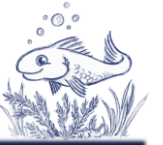
MIT / Copyright /
Other License
(referencing origin MIT)

Version of 2026



Copyright / Other
License
(referencing origin MIT)

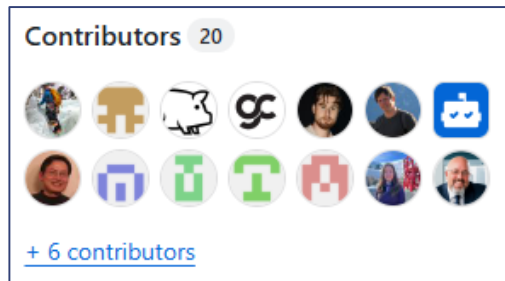
Example – Changing License



➤ Hypothetic GPLv3



GPLv3



GitHub -> Contributions
accept license terms



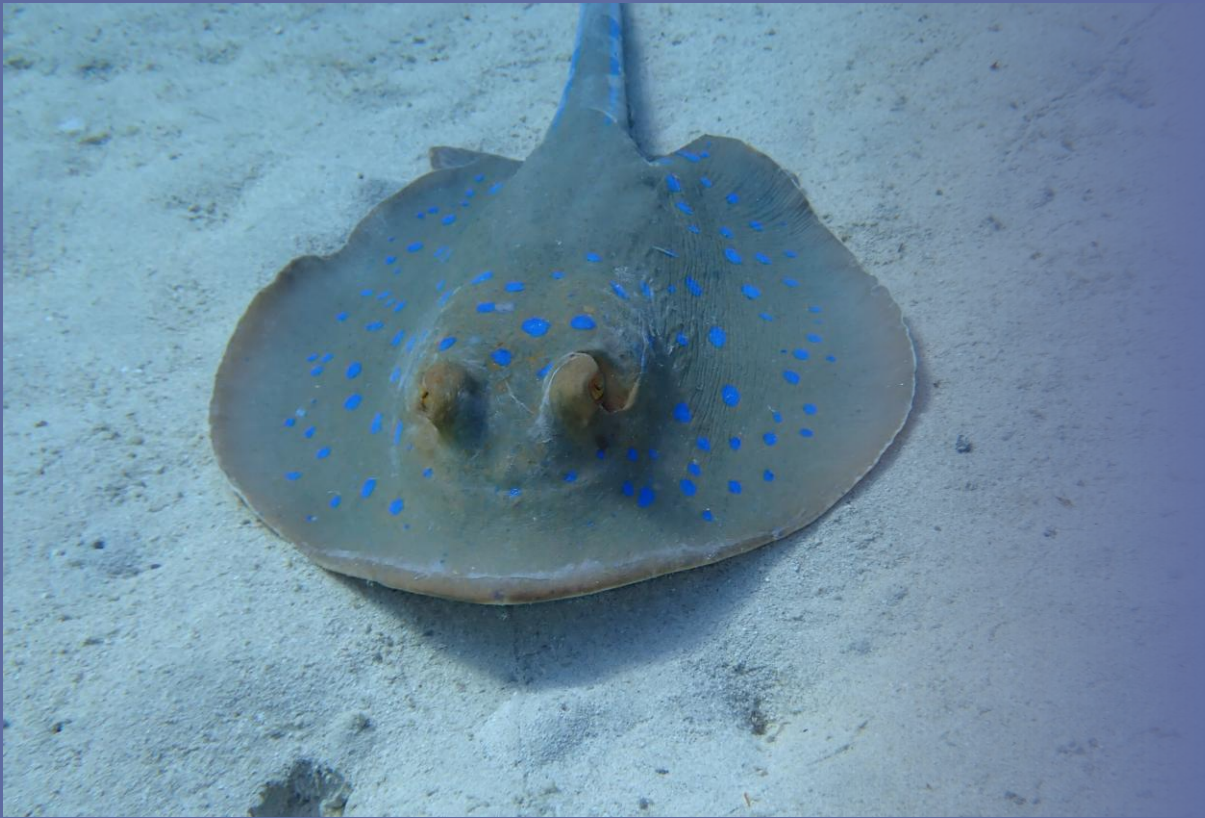
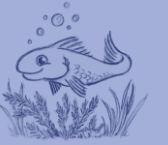
GPLv3



Version of 2026

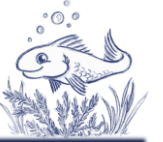


Copyright / Other
License
(referencing license)



Summary

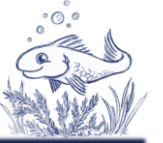
Summary



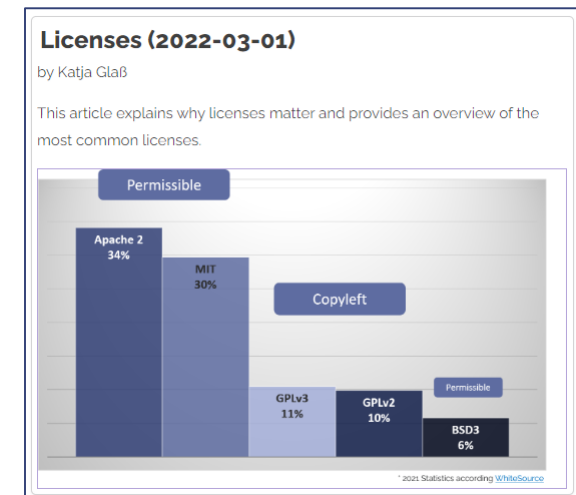
- Still much uncertainty
- Default copyright
- Safest, use idea and re-program
- Care about licenses (terms of use)
- Apply license to own code
- Don't be afraid of copyleft
 - Code is not the diamonds, it's the data



Links



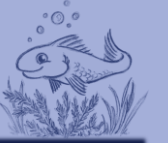
- Article on licenses
(<https://www.glacon.eu/portal/articles/2022-03-01-licenses.html>)
- Choose a license – good overview
(<https://choosealicense.com/licenses/>)
- The legal side of open source
(<https://opensource.guide/legal/>)
- CDISC Open Source Alliance
(<https://cosa.cdisc.org/>)
- Open Source Technology in Clinical Data Analysis
(<https://phuse-org.github.io/OSTCDA/>)



Acknowledgment



Questions?



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www.glacon.eu

www.glacon.eu/portal
